

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

8. ESTEFANIA SIMMONS V. RONALD SIMMONS

25FL0176

Petitioner filed a Request for Order (RFO) on March 20, 2026 seeking to bifurcate the issue of marital status and restoration of her former name. She concurrently filed the requisite FL-315. All required documents were served by mail on September 9, 2026.

On February 19, 2026, Respondent filed an RFO seeking visitation orders, spousal support, and attorney's fees. On April 10th and April 23rd, Respondent filed two more RFOs seeking custody and visitation orders along with spousal support orders. He did not file an Income and Expense Declaration with any of the aforementioned and there is no Proof of Service for any of the RFOs or any of the other required documents. All three RFOs are therefore, dropped from calendar due to lack of proper service.

On June 30, 2026, the parties attended a hearing on competing restraining orders against one another. The court denied Respondent's request for a restraining order against Petitioner but granted Petitioner's request for one against Respondent. The court made custody and visitation orders and then set the matter for hearing on the issues of bifurcation, spousal support and attorney's fees pursuant to the pending RFOs.

Petitioner filed a declaration and her Income and Expense Declaration on July 27, 2026. There is no Proof of Service for these documents therefore they have not been read or considered. She filed and served another declaration on September 9, 2026.

As previously stated, the RFOs for support and attorney's fees have been dropped from calendar due to the lack of proper service. Moreover, they are dropped due to Respondent's failure to file the proper paperwork. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). Additionally, the party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Respondent did not file an Income and Expense Declaration with any of his RFOs; and the most recent Income and Expense Declaration the court does have from Respondent is dated March 30, 2026. Because his Income and Expense Declaration was not timely filed and is not current, his requests for spousal support and attorney's fees are dropped from calendar.

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Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that “[a]ll pension plans that have not been divided by court order that require joinder ...” have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Petitioner has filed the requisite paperwork and it appears there are no retirement plans that require joinder. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The court orders parties to appear for the hearing on this issue.

TENTATIVE RULING #8: RESPONDENT’S FEBRUARY 19TH, APRIL 10TH, AND APRIL 23RD RFOS ARE DROPPED FROM CALENDAR FOR LACK OF PROPER SERVICE AND FOR FAILURE TO FILE A TIMELY AND UP-TO-DATE INCOME AND EXPENSE DECLARATION. THE COURT FINDS GOOD CAUSE TO GRANT THE BIFURCATION. THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THIS ISSUE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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9. NICOLE THOMAS-FRANCIS V. MATHEW FRANCIS

PFL20180529

On July 14, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The RFO was originally filed ex parte and as such, the court made temporary orders, referred the parties to Child Custody Recommending Counseling (CCRC) and set a hearing on the regular law and motion calendar.

Respondent filed and served his Responsive Declaration to Request for Order on July 22nd.

The parties attended CCRC on August 4th but they were unable to reach any agreements. A report with recommendations was prepared on September 2nd and mailed to the parties on September 3rd.

On September 10, 2026, Petitioner filed and served a supplemental declaration.

Petitioner is requesting sole legal and sole physical custody of the minor pending completion of the Washington CPS investigation and any California CPS investigation. She asks that the court make any additional orders as necessary for the health, safety, and best interests of the minor. Finally, she asks the court to reserve her right to argue for attorney's fees pursuant to Family Code § 3020.

Respondent opposes Petitioner's requests and asks the court to award him sole legal and sole physical custody. He further asks that Petitioner be ordered to undergo a 730 evaluation. He is also requesting full disclosure of all medical and academic records of the minor, appointment of Minor's Counsel, an order for the parties to utilize Our Family Wizard and a no-contact order between Xander Julian Thomas and the minor.

First and foremost, the request for attorney's fees is denied without prejudice. Petitioner's reliance on Family Code § 3020 is misplaced as Section 3020 does not have a mechanism for attorney's fees. To the extent her request was based on Section 2030, the request is also denied. "[T]o request attorney's fees and costs, a party must complete, file and serve the following documents:...Request for Attorney's Fees and Costs Attachment (form FL-319) or a comparable declaration that addresses the factors covered in form FL-319...[and a] personal declaration in support of the request for attorney's fees and costs, either using Supporting Declaration for Attorney's Fees and Costs Attachment (form FL-158) or a comparable declaration that addresses the factors covered in form FL-158..." Cal. Rule of Ct. 5.427(b)(1). Petitioner has not filed either a form FL-319, an FL-158, or a declaration covering the necessary factors for the court to rule on a request for attorney's